



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

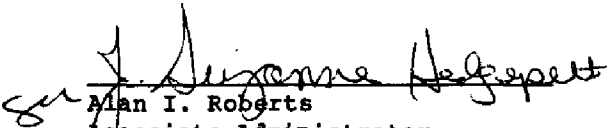
DOT-E 9747 (EXTENSION)
ORIGINAL December 12, 1988

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9747 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

NOV 4 1992

(DATE)


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

Dist: FHWA FRA USCG FAA

EXEMPTION HOLDER

APPLICATION DATE

Aerosol Services Company, Inc.
City of Industry, CA

November 21, 1991



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of Transportation

Research and
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400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9747

DEC 12 1988

1. Aerosol Services Company, Inc., is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of the hazardous materials described in paragraph 3 below for transportation in commerce, subject to the limitations and special requirements specified herein. This exemption authorizes the use of a non-DOT specification packaging, comparable to a DOT 2P except for size and thickness, for shipment of materials authorized in a DOT 2P, and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

Heartland Industries, Inc., City of Industry, CA. - PTE-1

2. BASIS. This exemption is based on the application of Aerosol Services, Inc. dated March 30, 1987, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon. The granting of party status is based on the following applications submitted in accordance with 49 CFR 107.111, and the public proceeding thereon:

Heartland Industries' application dated March 30, 1987.

3. HAZARDOUS MATERIALS (Descriptor and class). Liquefied insecticide gas (containing no poison A or poison B material) classed as a nonflammable gas.

4. PROPER SHIPPING NAME (49 CFR 172.101). Insecticide, liquified gas (containing no poison A or poison B material)..

5. REGULATION AFFECTED. 49 CFR 173.304(d) (3), 173.306, 178.33-2, 178.33-7.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel, cargo-aircraft only.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a nonrefillable, non-DOT specification packaging manufactured from ASTM A 23 steel plate (with a yield stress of 36,000 psi), in conformance with Metal Box p.l.c's drawing 65 AM dated March 24, 1987 and DOT specification 2P (49 CFR 178.33) except as follows:

178.33-2 Type and size.

(a) * * *

(b) Maximum capacity must not exceed 1.0 liter (61.4 cubic inches). Maximum diameter is 3 inches.

178.33-7 Wall thickness.

(a) The minimum wall thickness shall be 0.009 inch.

178.33-9 Marking.

(a) * * *

(1) DOT-E 9747 in lieu of DOT 2P.

* * * * *

8. SPECIAL PROVISIONS.

a. A copy of this exemption must be carried aboard each aircraft and cargo vessel used to transport packages covered by this exemption.

b. Shippers may use the packaging covered by this exemption pursuant to the provisions of 49 CFR 173.22a.

c. Each package must be prepared and shipped in accordance with the following:

(1) Each completed cylinder as prepared for shipment must be heated until the pressure in the container is equivalent to the equilibrium pressure of the lading at 130 °F. Lading equilibrium pressure must not exceed 100 psig at 130 °F. Liquid content of lading must not completely fill the container at 130 °F. Acceptable containers must show no evidence of leakage, distortion or other defect.

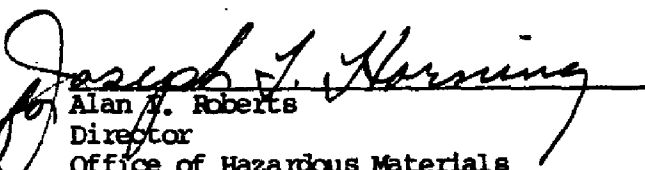
(2) The container must be packed in a strong outside packaging as prescribed in 49 CFR 173.301(k).

(3) Each outside packaging must be marked "INSIDE CONTAINERS COMPLY WITH PRESCRIBED REGULATIONS".

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package or damage to the packaging must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. March 30, 1989.

Issued at Washington, D.C.:


Alan T. Roberts
Director
Office of Hazardous Materials
Transportation

DEC 12 1988

(DATE)

Continuation of DOT-E 9747

DEC 12 1988

Page 3

Address all inquiries to: Director, Office of Hazardous Materials
Transportation, Research and Special Programs Administration, U.S.
Department of Transportation, Washington, D.C. 20590. Attention:
Exemptions Branch.

Dist: FHWA, USCG, FRA, FAA.